

Defendant CVUSD's request for Sanctions DENIED.

Trial Setting Conference to be conducted. Parties are to be prepared to address readiness for a trial date, as well as discuss the OSC re related case CVPS 2605423 Doe v. Contreras.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL REQUEST FOR PRODUCTION OF DOCUMENTS FROM DEFENDANT COACHELLA VALLEY UNIFIED SCHOOL DISTRICT

Tentative Ruling: Pursuant to CCP §2031.010, a party may demand that any other party produce and inspect a document that is in the possession of another party. The demanding party must designate documents by specifically describing individual items or reasonably particularizing categories of documents. (CCP §2031.030(c)(1).) The responding party must respond to each request by either a statement that the party will comply, a representation that the party is unable to comply or an objection. (CCP §2031.210(a)(1)-(3).) If the demanding party determines that the statement of compliance or representation of inability to comply is incomplete or if an objection is without merit, the party may move to compel further responses. (CCP §2031.310(a)(1)-(3).) The moving party must establish good cause justifying discovery. (CCP §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and facts justifying discovery. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) Once good cause is established, the responding party has the burden to justify any objections. (*Ibid.*)

The only RFP response currently in dispute is the response to RFP No. 43 which seeks all emails containing the keywords “Carissa” or “Carrera” in the email accounts of several employees. The District indicates that it is in the process of producing the emails in PDF form on a rolling basis. Plaintiff argues that the documents must be produced in native form rather than PDF. Pursuant to CCP § 2031.030(a)(2), “[a] party demanding inspection, copying, testing, or sampling of electronically stored information may specify the form or forms in which each type of electronically stored information is to be produced.” Here, the RFP specifies that for all documents maintained in an Outlook or “pst” file, please drag and drop into a file in order to maintain metadata rather than printing to a PDF. The District did not object to this form of production. As such, the District is ordered to provide a supplemental response and produce documents in their native format.

Plaintiff's Motion to Compel Defendant Coachella Valley Unified School District Further Responses to Request for Production, Set One, GRANTED.

Defendant CVUSD to provide verified, code compliant responses and documents, without objection, to Request for Production, Set One within 45 days.